

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 794

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; PROVIDING LEGISLATIVE FINDINGS; AMENDING CHAPTER 2, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-213, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PROHIBITIONS ON EXCUSED ABSENCES FOR CERTAIN ACTIVITIES IN IDAHO PUBLIC SCHOOLS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE FINDINGS. The Legislature finds that the purpose of civic education is to instruct students about the history, structure, and operations of their civic institutions. The Legislature finds that respect for the views of a politically diverse citizenry and the tradition of political neutrality in our public institutions of learning means that political activism has no place in public education. The Legislature finds that granting excused absences for student walkouts or lobbying for political purposes invites political favoritism from school districts and places inappropriate political pressures on students with diverse views, neither of which have a place in the public education system of Idaho.

SECTION 2. That Chapter 2, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-213, Idaho Code, and to read as follows:

33-213. PROHIBITION ON EXCUSED ABSENCES FOR CERTAIN POLITICAL ACTIVITIES. (1) As used in this section:

(a) "School" means any public school teaching K-12 students within an Idaho school district.

(b) "School district" means an Idaho public school district and includes Idaho public charter schools.

(2) No school district, school, or teacher shall permit or grant excused absences to any student for:

(a) Participating in political protests;

(b) Working or volunteering for a group known to engage in political protests; or

(c) Participating in student walkouts.

(3) Any absence based on the activities provided in subsection (2) of this section shall be considered an unexcused absence for the day. Such absences shall count against the school district's average daily attendance.

(4) School districts shall report annually the total number of unexcused absences based on the activities provided in subsection (2) of this section to the Idaho superintendent of public instruction. Beginning in January 2027, the state superintendent of public instruction shall, by January 15 of each year, submit an annual report to the legislature including such data.

1 (5) The state board of education shall promulgate rules, subject to
2 legislative approval, implementing the provisions of this section.

3 SECTION 3. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after its
5 passage and approval.